

26STCV12355 26STCV12355

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-09-09

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Case Number: 26STCV12355 Hearing Date: September 9, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September 9, 2026

Case Name: De Leon v. City of LA, et al.

Case No.: 26STCV12355

Matter: Demurrer

Moving Party: Defendant Dollar Big Bargain, Inc.

Responding Party: Unopposed

Notice: OK

Ruling: The Demurrer is sustained, without leave to amend.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On April 16, 206, Plaintiff Alcira De Leon filed the operative Complaint for (1) Government Code Liability, (2) premises liability, and (3) negligence. Plaintiff alleges that "On or about June 19, 2024, Plaintiff, tripped and fell on into an open

electrical box located in front of or near the Subject Location. The walking surface was uneven, open, and deformed and as a direct result Plaintiff tripped, fell into, and sustained serious injury to her body.” The “Subject Location” is defined as the “sidewalk, walkway, parkway, and surrounding areas located in front of or near 426 S Alvarado Street, Los Angeles, CA 90057.”

Defendant Dollar Big Bargain, Inc. now demurs to the second and third causes of action for uncertainty and failure to state sufficient facts. Defendant argues that Plaintiff “does not allege that DOLLAR is a public entity. So the claims regarding an uneven sidewalk and open utility box are simply not actionable against DOLLAR. As a matter of law, DOLLAR owed no duty to plaintiff as to any of the alleged dangerous conditions under these circumstances.”

Because the Demurrer is unopposed, the Complaint is deemed abandoned. (Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20.)

The Demurrer is sustained. The Court is inclined to deny leave to amend.

Moving party to give notice.